DIVISION BENCH ITEM NO. 102

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ
CP (CAA) No. 10/ALD/2022 IN CA (CAA) No. 3/ALD/2022
(Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 14th December, 2023

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**A-ONE AGRIFOODS AND BEVERAGES PVT LTD & ORS WITH SUPERLATIVE WINES PVT. LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Amit Saxena, Sr. Adv. Assisted by Sh. Anang Kumar Shandilya & Sh. Anurup Dutta, Advs. — *: For the Applicant/Company*

Sh. Ajeet Kumar Singh, AOL — *: For the OL/Alld*

Sh. Krishna Dev Vyas, Adv. — *: For the ROC*

Sh. Krishna Agarwal, Sr. S.C. — *: For the IT Deptt.*

ORDER

1. The Income Tax Department filed a consolidated report vide Diary No. 2885 dated 7th November, 2023 making observations with regard to some amount outstanding qua the Transferor Company. Observations is also made with regard to the pending proceedings under Section 147 of the IT Act. Further observation is also made with respect to some large amount of outstanding due from the Transferee Company as well.

-Sd- ***-Sd-***

2. Ld. Sr. Counsel representing the Petitioner Company states that with respect to the amount outstanding qua the Transferor Company, the same has already been paid. He however states that an affidavit to that effect would be filed within a period of 3 days.

3. With respect to the pendency of the proceedings under Section 147, it is stated by the Ld. Sr. Counsel that as per Section 178 amendment to the Income Tax Return has to be accordingly filed. The undertaking to that effect shall be filed within a period of 3 days.

4. As regards to the 3rd aspect of the amount due from the Transferee Company, it is submitted by the Ld. Sr. Counsel that since this amount is due from Transferee Company and as a result of the merger the Transferee Company still exists and would therefore, be abiding all laws of the concerned department. Let the affidavit to that effect be also filed within a period of 3 days.

5. The matter is adjourned for further hearing on 21st December, 2023.

-Sd- ***-Sd-***

(Ashish Verma) **(Praveen Gupta)**
Member (Technical) **Member (Judicial)**

14th December, 2023

Bipul Kumar Tiwari
(Stenographer)